

PETITION FOR VACATUR UNDER RCW 9.96.060(6)

IN THE WASHINGTON SENTENCING COURT

Court name:

Cause number:

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

PETITION FOR VACATUR UNDER RCW 9.96.060(6)

A. REQUEST AND ROUTE

This route-specific Petition asks the sentencing court to vacate the qualifying conviction identified below under RCW 9.96.060(6). The court must verify every statutory fact before entering an order.

This Petition is paired with a participant declaration, a notice and proposed order, and program documentation. The packet does not decide eligibility for the court.

B. PETITIONER

Full legal name: Maria-Alejandra O'Shaughnessy-Whitfield

Date of birth: 1968-12-31

Mailing address: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville
39501-2214

Telephone: (228) 555-0199 ext. 4417

Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

C. CONVICTION IDENTIFICATION

Copy each item exactly from the court record. Do not infer a statute, court, cause number, or date.

Exact conviction identity:

.....

Exact conviction statute (verify that it is one of the listed route categories):

.....

Conviction date:

.....

Sentencing court and cause number confirmed from the record:

.....

D. STATUTORY FACT GATE

Pending charges or new convictions status, including the jurisdictions checked:

.....

Other counts, related matters, and any fact that could change the route:

.....

Statement that the petitioner has reviewed the statutory eligibility facts and is asking the court to determine them:

.....

E. PROGRAM EVIDENCE

Attach one evidence path: (1) substance use disorder program completion proof; OR (2) a qualifying program assessment plus a written status update showing at least six months of substantial compliance with recommended treatment or services and progress toward recovery goals.

Evidence path selected and documents attached:

.....

F. REQUEST

After reviewing the exact conviction record and attached program evidence, the petitioner asks the sentencing court to determine whether RCW 9.96.060(6) is satisfied and, if so, enter the appropriate vacatur order.

DATE SIGNATURE OF PETITIONER

The petitioner signs and dates this page personally. This build never signs or dates for the petitioner.

For the assessment path, the assessment must be from one of these statutory programs: a recovery navigator program under RCW 71.24.115, an arrest and jail alternative program under RCW 36.28A.450, or a law enforcement assisted diversion program under RCW 71.24.589. Obtain a written status update establishing at least six months of substantial compliance with recommended treatment or services and progress toward recovery goals. If the qualifying program identity cannot be verified, stop and obtain legal help.

RCW 9.96.060(2)(a)-(i) does not itself bar an otherwise qualifying subsection (6) application. Pending or new cases; violence or domestic violence; protection, no-contact, antiharassment or civil-restraint orders; weapons or enhancements; DUI, physical-control or reduced-driving offenses; and firearm-rights questions still require individualized legal advice about separate consequences or other routes; do not treat them as automatic subsection (6) ineligibility. This packet does not restore firearm rights or decide eligibility under a different route.

PARTICIPANT DECLARATION FOR RCW 9.96.060(6) VACATUR

IN THE WASHINGTON SENTENCING COURT

Court name:

Cause number:

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield, PETITIONER.

PARTICIPANT DECLARATION FOR RCW 9.96.060(6) VACATUR

I, Maria-Alejandra O'Shaughnessy-Whitfield, make this declaration from my personal knowledge. I will state only facts needed for this route and will not guess at facts I cannot verify.

1. IDENTITY AND CASE

Date of birth: 1968-12-31

Exact conviction identity:

.....

Exact conviction statute:

.....

Conviction date:

.....

2. EVIDENCE PATH

Write one path and attach the matching records:

Path 1 - substance use disorder program completion proof:

.....

OR

Path 2 - qualifying program assessment plus written status update:

.....

Program name and provider:

.....

Completion or assessment date:

.....

For Path 2, written status showing at least six months of substantial compliance with recommended treatment or services and progress toward recovery goals:

.....

Documents attached and the facts each document supports:

.....

3. CURRENT STATUS AND REQUEST

Pending charges or new convictions status:

.....
Other counts, related matters, or uncertain eligibility facts:

.....
I ask the sentencing court to decide whether the statutory route is satisfied from the record and attachments.

DECLARATION UNDER PENALTY OF PERJURY

I declare under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

SIGNED AT (city and state):

DATE SIGNATURE OF DECLARANT

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

For the assessment path, the assessment must be from one of these statutory programs: a recovery navigator program under RCW 71.24.115, an arrest and jail alternative program under RCW 36.28A.450, or a law enforcement assisted diversion program under RCW 71.24.589. Obtain a written status update establishing at least six months of substantial compliance with recommended treatment or services and progress toward recovery goals. If the qualifying program identity cannot be verified, stop and obtain legal help.

NOTICE AND PROPOSED ORDER FOR RCW 9.96.060(6) VACATUR

IN THE WASHINGTON SENTENCING COURT

Court name:

Cause number:

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield, PETITIONER.

NOTICE AND PROPOSED ORDER FOR RCW 9.96.060(6) VACATUR

NOTICE TO THE STATE AND PROSECUTOR

The petitioner gives notice of the route-specific Petition and supporting declaration. The State or prosecutor must receive the notice and filing as required by the sentencing court. The filing party must use the court's current service procedure.

Notice recipient and service method recorded by the filing party or clerk:

.....

Date notice served:

.....

PROPOSED ORDER

The Court has reviewed the Petition, participant declaration, exact conviction record, and attached program documentation.

Court findings to be completed by the Court:

Qualifying conviction statute and identity:

.....

Evidence path and supporting records reviewed:

.....

RCW 9.96.060(6) statutory facts verified:

.....

Additional court finding or reason for decision:

.....

IT IS ORDERED:

[] The Petition is granted and the qualifying conviction is vacated to the extent permitted by law.

[] The Petition is denied.

[] Other disposition:

JUDGE / COURT COMMISSIONER SIGNATURE

DATE

The Court completes its own findings, disposition, signature, and date. This page does not prefill a

judicial decision.

PROGRAM EVIDENCE CHECKLIST FOR RCW 9.96.060(6)

PROGRAM EVIDENCE CHECKLIST AND RECORDS REQUEST

This checklist is for Maria-Alejandra O'Shaughnessy-Whitfield.

The checklist organizes records; it does not create program proof and does not decide eligibility.

SELECT ONE EVIDENCE PATH

PATH 1 - COMPLETION PROOF

Attach a substance use disorder program completion record, such as a completion certificate, completion letter, discharge record, or equivalent status record from the provider.

PATH 2 - ASSESSMENT AND STATUS

Attach a qualifying program assessment plus a written status update showing at least six months of substantial compliance with recommended treatment or services and progress toward recovery goals.

PROGRAM RECORD DETAILS

Program name and provider:

.....

Completion or assessment date:

.....

For Path 2, the six-month compliance and recovery-progress record:

.....

List each attached record and the fact it supports:

.....

REQUIRED ASSESSMENT PROGRAM ALTERNATIVES

For the assessment path, the record must identify one of these programs. Preserve its exact name and provider: recovery navigator under RCW 71.24.115; arrest and jail alternative under RCW 36.28A.450; or law enforcement assisted diversion under RCW 71.24.589.

Do not assume a program qualifies from its label alone. Stop when the provider, assessment, completion, or six-month status cannot be verified.

ATTACHMENT CHECK

- ☐ The exact conviction record is included or available to the sentencing court.
- ☐ The selected evidence path is identified truthfully.
- ☐ Each attached program record is legible and attributable to its provider.
- ☐ The assessment path includes written status for at least six months.
- ☐ No document has been altered or completed by this packet.

For the assessment path, the assessment must be from one of these statutory programs: a recovery navigator program under RCW 71.24.115, an arrest and jail alternative program under RCW 36.28A.450, or a law enforcement assisted diversion program under RCW 71.24.589. Obtain a written status update establishing at least six months of substantial compliance with recommended treatment or services and progress toward recovery goals. If the qualifying program identity cannot be verified, stop and obtain legal help.

FILING AND SERVICE INSTRUCTIONS FOR RCW 9.96.060(6)

FILING AND SERVICE INSTRUCTIONS

These instructions are for Maria-Alejandra O'Shaughnessy-Whitfield.

ROUTE

This is a route-specific petition and declaration under RCW 9.96.060(6). The packet is built for a qualifying Washington drug conviction after the required treatment or recovery-program evidence is assembled.

BEFORE YOU FILE

1. Copy the exact sentencing court, cause number, conviction identity, statute, and date from the court record into every requested blank.
2. Confirm that the exact conviction statute is one of the listed categories: RCW 69.50.4011(1)(b) or (c), RCW 69.50.4013, RCW 69.50.4014, or RCW 69.41.030(2)(b) or (c).
3. Check pending charges, new convictions, other counts, related matters, and any fact that could change the route. Do not guess.
4. Choose one evidence path: qualifying completion proof; OR qualifying assessment plus written status showing at least six months of substantial compliance with recommended treatment or services and progress toward recovery goals.
5. Attach the exact program records and complete the evidence checklist. The packet never creates, edits, or substitutes program proof.
6. Complete the notice and use the sentencing court's current procedure for serving the State or prosecutor.
7. Ask the sentencing-court clerk whether a filing fee applies, its amount, and whether a waiver is available. This packet does not invent a fee or waiver rule.
8. Review local court filing, service, redaction, and hearing instructions before submission. Keep copies of what was filed and served.
9. Sign and date the Petition and participant declaration personally after reviewing every fact.

WHEN TO STOP AND GET HELP

Stop and get legal help if the exact conviction, statute, court, cause number, pending/new status, other counts, or eligibility facts are uncertain.

Stop if neither evidence path is available, if the six-month status cannot be established for the assessment path, or if program records cannot be verified.

Stop if filing, service, safety, immigration, sealing, or related-case consequences require advice beyond these instructions.

WHAT THIS PACKET DOES NOT ESTABLISH

It does not establish eligibility, create a court order, prove program completion or status, determine a fee,

or promise what another record system will display. Only the sentencing court can decide the Petition.

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